

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

MOHAMMED BOSTIC,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER JOHN/JANE
DOE(S) #'S 1-5,

Defendant.

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Index No.:

Date Purchased:

SUMMONS

Plaintiff designates NEW YORK
County as the place of trial.

The basis of venue is:
Plaintiff's Residence

Plaintiff resides at:
2937 8TH Avenue, Apt. 27CC
New York, New York 10039

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 24, 2016

NASS & ROPER LAW, P.C.

By:

JUSTIN M. ROPER, ESQ.
Attorneys for Plaintiff
14 Penn Plaza, Suite 2004
718-775-3246

Defendant's Address:

NEW YORK CITY LAW DEPARTMENT
100 Church Street
New York, New York 10007

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MOHAMMED BOSTIC,

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COMPLAINT

**PLAINTIFF DEMANDS
TRIAL BY JURY ON
ALL ISSUES**

Plaintiff, MOHAMMED BOSTIC, by his attorneys, NASS & ROPER LAW, P.C.
complaining of the Defendants, respectfully alleges, upon information and belief, as follows:

I. PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiff, MOHAMMED BOSTIC, seeks damages to redress the deprivation, under color of state law, of rights secured to him under the Fourth, Fifth, Sixth and Fourteenth Amendments of the United States Constitution. On or about May 16, 2015, at approximately 12:45 A.M., at or near the location of 2937 8TH Avenue, Apt. 27CC in the County of New York, City and State of New York, MOHAMMED BOSTIC was assaulted by Defendants including, but not limited to, CITY OF NEW YORK and POLICE OFFICER JOHN/JANE DOE(S) #'S 1-5. It is alleged that Defendants used excessive force in effectuating his arrest, and subjected MOHAMMED BOSTIC to cruel and unusual punishment in violation of his constitutional rights.

II. JURISDICTION

2. Jurisdiction is conferred upon this Court by 28 U.S.C. §1343 (3) and (4), which provides for original jurisdiction in this court of all suits brought pursuant to 42

U.S.C. §1983, and by 28 U.S.C. §1331, which provides jurisdiction over all cases brought pursuant to the Constitution and laws of the United States. This Court has pendant jurisdiction over BOSTIC's state law claims.

III. PARTIES

3. Plaintiff, MOHAMMED BOSTIC, at all times relevant hereto resided in New York County, specifically 2937 8TH Avenue, Apt. 27CC, in the County of New York, City and State of New York.
4. Defendant, CITY OF NEW YORK, (hereinafter "CITY") is a municipal corporation, incorporated pursuant to the laws of the State of New York, which operates the New York City Department of Corrections and as such is the public employer of the Defendant officers herein.
5. Defendants, POLICE OFFICER JANE/JOHN DOE(S) #'s 1-5 were New York City Department of Corrections Officers, and at all relevant times hereto, acted in that capacity as agents, servants, and/or employees of the City of New York and within the scope of their employment.
6. At all relevant times hereto, Defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities.

IV. FACTS

7. On or about May 16, 2015, at approximately 12:45 a.m., MOHAMMED BOSTIC ("BOSTIC"), was at his home at 2937 8TH Avenue, Apt. 27CC, in the County of New York, City and State of New York.
8. Defendants came through the door of his home and threw him to the ground.

9. While on the ground, Defendants violently struck Plaintiff and stomped on his hand causing injury.
10. Defendants also continued stomping on his hand and caused severe and permanent injuries to his hand.
11. That as a result of this incident, BOSTIC sustained severe physical injuries and permanent damage.
12. That on or around the 28th day of May, 2015, BOSTIC's Notice of Claim and Intention to sue was duly served upon and filed with the CITY; said Notice was filed within ninety (90) days after the cause of action herein accrued and set forth the name and post office address of BOSTIC, the nature of the claim, the time when, the place where, the manner in which the claim arose and the items of damage and injuries sustained.
13. That at least thirty (30) days have elapsed since the demand or claim upon which these actions are predicated was presented to CITY for adjustment or payment thereof and that it has neglected and/or refused to make adjustment or payment thereof.
14. That on or around July 29th, 2015, BOSTIC appeared at 50-H deposition to discuss the incident as ordered by Defendant, City of New York.

V. FIRST CAUSE OF ACTION
Pursuant to §1983 and New York State Law (FALSE ARREST)

15. Paragraphs 1 through 14 of this complaint are hereby re-alleged and incorporated by reference herein.
16. That Defendants had neither valid evidence for the arrest of Plaintiff nor legal cause or excuse to seize and detain him for approximately two hours.

17. That in detaining Plaintiff for approximately 24 hours, and without a fair and reliable determination of probable cause, Defendant CITY abused its power and authority as a policymaker of the New York City Police Department under the color of State and/or local law.
18. Upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately supervise and train its officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.
19. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.
20. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of Plaintiff's rights alleged herein.
21. By reason of Defendants acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of Plaintiff's rights, subjected Plaintiff to an unlawful detention, in violation of the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.
22. By reason of the foregoing, Plaintiff suffered mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

VI. SECOND CAUSE OF ACTION
Pursuant to §1983 and New York State Law (EXCESSIVE FORCE)

23. Paragraphs 1 through 22 are hereby re-alleged and incorporated by reference herein.
24. That Defendants had no legal cause or reason to use excessive force in effectuating BOSTIC's arrest.
25. That Defendants violated BOSTIC's Fourth and Fourteenth Amendment right to be free from unreasonable seizures when they used excessive force against him.
26. That at the time of the arrest, BOSTIC did not pose a threat to the safety of the officers.
27. That BOSTIC was not actively resisting arrest or attempting to evade arrest.
28. That BOSTIC suffered serious permanent physical injuries from Defendant's use of excessive force.
29. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.
30. That Defendants are liable for preventable harm to Plaintiff because they knew excessive force was being used; they knew a Constitutional violation had been committed through the use of that force; and Defendants had a reasonable opportunity to intervene and prevent the harm from occurring and failed to do so.
31. That by reason of Defendants acts and omissions, acting under color of state law and within the scope of his authority, in gross and wanton disregard of BOSTIC's rights, subjected BOSTIC to excessive force while effectuating his arrest, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

32. By reason of the foregoing, BOSTIC suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

VII. THIRD CAUSE OF ACTION
Pursuant to §1983 and New York State Law (CRUEL AND UNUSUAL PUNISHMENT)

33. Paragraphs 1 through 32 are hereby re-alleged and incorporated by reference herein.
34. That the attacks on BOSTIC by Defendants, were both sadistic in nature and the cause of serious permanent physical injuries upon BOSTIC.
35. That Defendants had no good-faith belief that their use of force was used to maintain or restore discipline against BOSTIC, but maliciously intended to cause grievous bodily injury to him.
36. That Defendants use of force to punish BOSTIC was objectively harmful enough to cause a serious physical injury to BOSTIC.
37. That Defendants violated BOSTIC's Eighth Amendment right to be free from cruel and unusual punishments.
38. By reason of the foregoing, BOSTIC suffered serious physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

VIII. FOURTH CAUSE OF ACTION
Pursuant to §1983 and New York State Law (MALICIOUS PROSECUTION)

39. Paragraphs 1 through 38 are hereby re-alleged and incorporated by reference herein.
40. That Defendants, with malicious intent, arrested Plaintiff and initiated a criminal proceeding despite the knowledge that Plaintiff had committed no crime.

41. That the criminal matter against Plaintiff was terminated in his favor and the court dismissed the case by motion of the District Attorney on May 14, 2015.
42. That there was no probable cause for the arrest and criminal proceeding.
43. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of Plaintiff's rights, deprived Plaintiff of his liberty when they maliciously prosecuted him and subjected him to an unlawful, illegal and excessive detention, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.
44. That upon information and belief, Defendants had a policy and /or custom of maliciously prosecuting individuals despite the lack of probable cause. Thus, as a result of the above described policies and customs, Plaintiff was maliciously prosecuted despite the fact that he had committed no violation of the law.
45. That upon information and belief it was the policy and /or custom of Defendant CITY to inadequately hire, train, supervise, discipline and /or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents, and employees.
46. That as a result of the above described policies and customs, Defendant CITY, its staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

47. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of arrestees and were the cause of the violations of Plaintiff's rights alleged herein.
48. That in so acting, Defendant CITY abused its power and authority as policymaker of the NYPD under the color of State and/or local law.
49. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorneys' fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

IX. FIFTH CAUSE OF ACTION
Pursuant to State Law (ASSAULT and BATTERY)

50. Paragraphs 1 through 49 are hereby re-alleged and incorporated by reference herein.
51. That Defendants intended to cause harmful bodily contact to Plaintiff.
52. That defendant Defendants, in a hostile manner voluntarily caused Plaintiff's injuries.
53. That Defendants contact with Plaintiff constituted a battery in violation of the laws of the State of New York.
54. That by reason of the foregoing, Plaintiff suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

X. SIXTH CAUSE OF ACTION
Pursuant to State Law (NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS)

55. Paragraphs 1 through 81 are hereby re-alleged and incorporated by reference herein.

56. That as a result of the aforementioned incidents intentionally caused by Defendants, Plaintiff, JOVAN MORALES, suffered severe emotional distress and physical injuries.
57. That as a result of the aforementioned extreme and outrageous conduct negligently inflicted by Defendants, Plaintiff suffered severe emotional and/or mental distress, including but not limited to emotional overlay, depression, stress, anxiety, humiliation, embarrassment and tension, serious permanent personal injuries of mind as well as special damages and loss and/or diminution in his enjoyment of life, and physical injuries, all of which are permanent in nature.

XI. SEVENTH CAUSE OF ACTION
Pursuant to State Law (*RESPONDEAT SUPERIOR*)

58. Paragraphs 1 through 57 are hereby re-alleged and incorporated by reference herein.
59. That at all times, all Defendants were acting within the scope of their employment.
60. That Defendant CITY was able to exercise control over Defendant Officers' activities.
61. That Defendant CITY is liable for Defendant Officers' actions under the doctrine of respondeat superior.

By reason of the foregoing, Plaintiff suffered mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

INJURY AND DAMAGES

As a result of the acts and conduct complained of herein, BOSTIC has suffered permanent physical injuries, emotional pain, suffering, inconvenience, injury to his reputation, loss of enjoyment of life, loss of liberty and other non-pecuniary losses.

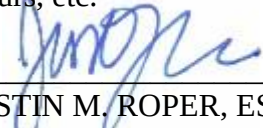
BOSTIC has further experienced severe emotional and physical distress.

WHEREFORE, Plaintiff respectfully requests that judgment be entered:

1. Awarding Plaintiff compensatory damages in a full and fair sum to be determined by a jury;
2. Awarding Plaintiff punitive damages in an amount to be determined by a jury;
3. Awarding Plaintiff interest from May 16, 2015; and
4. Awarding Plaintiff reasonable attorney's fees pursuant to 42 USC §1988; and
5. Granting such other and further relief as to this Court seems proper.

Dated: New York, NY
August 8th, 2016

Yours, etc.



JUSTIN M. ROPER, ESQ.
ATTORNEY FOR PLAINTIFF
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ATTORNEY'S VERIFICATION

JUSTIN M. ROPER, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney and member of NASS & ROPER LAW, P.C., attorneys for MOHAMMED BOSTIC. I have read the annexed COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff is that Plaintiff is not presently in the county wherein the attorneys for the Plaintiff maintain their offices.

DATED: New York, New York
 August 8th, 2016



JUSTIN M. ROPER, ESQ.

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Plaintiff,

– against –

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Defendants.

SUMMONS & VERIFIED COMPLAINT

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